

CONTRACT: Master Services Agreement - Accenture

Contract Details

Contract ID	C-001
Vendor	Accenture
Expiry Date	2025-06-15
Version	v2.1
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Risk Level	High
Created By	Anjali Rao
Uploaded Date	2024-01-10

Contract Content

MASTER SERVICES AGREEMENT

Contract ID: C-001

This Master Services Agreement ("Agreement") is entered into as of the Effective Date specified below by and between Accenture ("Vendor"), a corporation organized under the laws of [Insert Jurisdiction], having its principal place of business at [Insert Address], and [Insert Client Name] ("Client"), a corporation organized under the laws of [Insert Jurisdiction], having its principal place of business at [Insert Address]. Vendor and Client may each be referred to herein as a "Party" and collectively as the "Parties."

1. DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below:

- (a) "Services" means the commercial services, deliverables, and related activities to be provided by Vendor to Client as described in the Scope of Services section of this Agreement.
- (b) "Confidential Information" means any non-public, proprietary, or sensitive information disclosed by one Party to the other Party, whether orally, in writing, or by other means, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.
- (c) "Effective Date" means the date on which this Agreement is executed by both Parties.

2. SCOPE OF SERVICES

Vendor shall provide the Services to Client as set forth in the applicable statements of work, purchase orders, or other written agreements executed by the Parties ("Service Documents"). The Service Documents shall specify the scope, deliverables, timelines, and other relevant details of the Services.

Vendor shall perform the Services in a professional and workmanlike manner consistent with industry standards.

3. TERM AND TERMINATION

(a) Term. This Agreement shall commence on the Effective Date and shall remain in effect until terminated as provided herein.

(b) Termination for Convenience. Either Party may terminate this Agreement or any Service Document upon thirty (30) days' prior written notice to the other Party.

(c) Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days of receiving written notice of the breach.

(d) Effect of Termination. Upon termination of this Agreement, Vendor shall cease all Services and Client shall pay Vendor for all Services performed up to the effective date of termination.

4. FEES AND PAYMENT

(a) Fees. Client shall pay Vendor the fees specified in the applicable Service Documents.

(b) Payment Terms. Vendor shall invoice Client for Services rendered, and Client shall pay all undisputed invoices within thirty (30) days of receipt.

(c) Late Payments. Any amounts not paid when due shall accrue interest at the rate of one percent (1%) per month or the maximum rate permitted by law, whichever is lower.

5. CONFIDENTIALITY

(a) Obligations. Each Party agrees to protect the other Party's Confidential Information using the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care. Neither Party shall disclose the other Party's Confidential Information to any third party without prior written consent, except as required by law.

(b) Exclusions. Confidential Information does not include information that is publicly available, independently developed without use of the other Party's Confidential Information, or obtained from a third party without breach of any obligation of confidentiality.

6. DATA PROTECTION

Vendor shall comply with all applicable data protection laws and regulations in connection with the Services. Vendor shall implement appropriate technical and organizational measures to protect Client's data against unauthorized access, loss, or destruction.

7. INTELLECTUAL PROPERTY

(a) Ownership. All intellectual property rights in any materials provided by Client to Vendor shall remain the sole property of Client. All intellectual property rights in any deliverables created by Vendor in connection with the Services shall be owned by Client upon payment in full, unless otherwise agreed in writing.

(b) License. Vendor grants Client a non-exclusive, royalty-free license to use any pre-existing intellectual property incorporated into the deliverables solely for Client's internal business purposes.

8. WARRANTIES

(a) Vendor warrants that the Services shall be performed in a professional and workmanlike manner and in accordance with applicable laws and regulations.

(b) Disclaimer. Except as expressly provided in this Agreement, Vendor disclaims all other warranties, express or implied, including any warranties of merchantability or fitness for a particular purpose.

9. LIABILITY LIMITATION

To the maximum extent permitted by law, neither Party shall be liable to the other Party for any indirect, incidental, consequential, or punitive damages arising out of or related to this Agreement, even if advised of the possibility of such damages. Vendor's total liability under this Agreement shall not exceed the total fees paid by Client to Vendor under this Agreement during the twelve (12) months preceding the event giving rise to the claim.

10. INDEMNITY

(a) Vendor Indemnity. Vendor shall indemnify, defend, and hold harmless Client from and against any claims, damages, or liabilities arising out of Vendor's breach of this Agreement or its gross negligence or willful misconduct.

(b) Client Indemnity. Client shall indemnify, defend, and hold harmless Vendor from and against any claims, damages, or liabilities arising out of Client's breach of this Agreement or its gross negligence or willful misconduct.

11. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of [Insert Jurisdiction], without regard to its conflict of laws principles.

12. DISPUTE RESOLUTION

(a) Negotiation. The Parties shall attempt to resolve any disputes arising under this Agreement through good faith negotiations.

(b) Arbitration. If the Parties are unable to resolve a dispute through negotiation, the dispute shall be submitted to binding arbitration in accordance with the rules of [Insert Arbitration Institution]. The arbitration shall take place in [Insert Location], and the decision of the arbitrator(s) shall be final and binding.

13. MISCELLANEOUS

(a) Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior agreements, understandings, and communications.

(b) Amendments. This Agreement may only be amended by a written agreement signed by both Parties.

(c) Assignment. Neither Party may assign or transfer this Agreement without the prior written consent of the other Party, except in connection with a merger, acquisition, or sale of substantially all of its assets.

(d) Notices. All notices under this Agreement shall be in writing and delivered to the addresses specified above or such other addresses as the Parties may designate in writing.

(e) Severability. If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

[Signature Block for Vendor]

Name: _____

Title: _____

Date: _____

[Signature Block for Client]

Name: _____

Title: _____

Date: _____

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